

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

LUC TUCKER., *Claimant*

v.

GLOBALOG GROUP, *Respondent*.

DOCKET NO. 2011(I)

Served: December 12, 2024

BEFORE: Theresa DIKE, *Small Claims Officer*.

NOTICE OF DISMISSAL

On June 5 2024, the Secretary of the Federal Maritime Commission issued a Notice of Filing of Small Claims Complaint and Assignment (“Notice of Filing”) noting that Claimant Luc Tucker had filed a complaint against Respondent Globalog Group. (“Globalog”). Claimant alleges that Globalog falsely claimed that his cargo was selected for examination in New York when it had not, and that Globalog then collected charges of \$666.76 from him, in violation of 46 U.S.C. § 41104(a)(4)(A).

The Secretary noted that the informal complaint was mailed to Respondent the same day and that it was required to file a response to the complaint by July 1, 2024, and indicate whether it consents to the adjudication of the Claim under the informal procedures provided at Subpart S of the Commission’s Rules of Practice and Procedure (46 C.F.R. § 502.301-305). The Secretary also assigned the proceeding to the Chief Administrative Law Judge to designate a Small Claims Officer to adjudicate the proceeding.

Respondent failed to file a response by the provided deadline and it was discovered that the address to which the Notice of Filing had been sent was not the proper address for Respondent. A Notice of Service was then sent to Respondent on July 23, 2024, by UPS to a different address. The Notice of Service instructed Respondent to respond by August 19, 2024. The tracking information from UPS shows that the Notice was delivered to Globalog on July 24, 2024. Globalog failed to file a response by the August 19, 2024, deadline and an email was sent to it on October 7, 2024, advising it that failure to respond to the Claim could result in a default judgment against it, and extending the deadline for its response to October 14, 2024. Globalog similarly failed to respond to the email.

On October 24, 2024, the Chief Administrative Law Judge assigned this proceeding to the undersigned for adjudication. On October 29, 2024, an order to show cause issued to Globalog (“Show Cause Order”), which also included a request for additional information to

Claimant Luc Tucker, directing Globalog to show cause by November 12, 2024, why a default judgment should not be entered against it and directing Claimant to:

review the provisions of section 41104(a)(4)(A) and explain why the alleged conduct falls within the prohibitions set forth at 41104(a)(4)(A), including how respondent qualifies as a “common carrier” and why its conduct was “unfair or unjustly discriminatory” in the matter of rates or charges. Claimant should support its response with supporting evidence, including evidence establishing that Respondent’s claim that the shipment in question had been selected for examination in New York was false, and that Claimant paid \$666.76 as a result and is entitled to a refund of the payment. Claimant’s response should be received by November 12, 2024.

Show Cause Order at 2. No response was received from Globalog to the Show Cause Order. On November 12, 2024, a letter was received from Claimant stating in pertinent part:

I cannot say that Globalog Group qualifies as “person holding itself out to the general public to provide transportation by water of cargo between the United States and a foreign country.” It is not clear to me that Globalog Group was responsible for the transportation phase of the shipment and I therefore cannot pursue this case under the rules stated above.

Letter at 1. A follow up email was sent to Claimant on November 14, 2024, asking for confirmation that he wished to dismiss his complaint, to which he replied on November 15, 2024: “That is correct. I confirm that I am unable to pursue this complaint any further.”

Commission Rule 72(a)(1) provides:

When no settlement agreement is involved, the complainant may dismiss an action without an order from the presiding officer by filing a notice of dismissal before the opposing party serves either an answer, a motion to dismiss, or a motion for summary decision. Unless the notice or stipulation states otherwise, the dismissal is without prejudice.

46 C.F.R. § 502.72(a)(1). Although Rule 72, governing dismissal of Commission proceedings, is not applicable to Subpart S proceedings, the undersigned used the rule as a guide for ruling on Claimant’s request to dismiss the Claim.

Respondent has not filed a response or participated in this proceeding and no settlement occurred between the parties; Claimant is, therefore, entitled to dismiss his Claim. Accordingly, this proceeding is hereby dismissed.

**THERESA
DIKE**

Theresa Dike
Small Claims Officer

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